

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Adriaan Denbroeder	Team: Squad #15	CCRB Case #: 202100995	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/04/2021 10:30 PM, Friday, 02/05/2021 1:40 PM	Location of Incident: § 87(2)(b)	Precinct: 47	18 Mo. SOL 8/4/2022	EO SOL 8/4/2022	
Date/Time CV Reported Fri, 02/05/2021 1:55 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/16/2021 11:09 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT David Verna	2790	953527	047 PCT
2. PO Matthew Strawn	20637	959273	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Dineroy Pinales	20470	959077	047 PCT
2. POF Gabriela Breton	14477	966479	047 PCT
3. PO Henry Valencia	29140	951360	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT David Verna	Abuse: On February 4, 2021, Sergeant David Verna forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
B.PO Matthew Strawn	Abuse: On February 5, 2021, Police Officer Matthew Strawn threatened to arrest § 87(2)(b)	§ 87(2)(b)
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint via IAB and it was received by the CCRB on February 16th, 2021.

On February 4th, 2021, at approximately 10:30pm, § 87(2)(b) was engaged in a dispute with the two proprietors of the § 87(2)(b) § 87(2)(b) and § 87(2)(b) located at § 87(2)(b) in the Bronx. § 87(2)(b) called 911 to report that § 87(2)(b) had thrown some sort of liquid into his eye. Police officers Gabriela Breton and Dinericy Pinales of the 47th Precinct responded and spoke to both § 87(2)(b) as well as § 87(2)(b) and § 87(2)(b). The officers instructed § 87(2)(b) to leave the location. At one point, either PO Pinales or PO Breton called for an ambulance as well as a supervisor, and told § 87(2)(b) to either leave the location, or go to the hospital. Sgt. David Verna of the 47th Precinct responded and spoke with § 87(2)(b) and made the decision to send him to the hospital (**Allegation A: Abuse of Authority**—§ 87(2)(g)). § 87(2)(b) went into the ambulance, and then decided he did not want to go to the hospital. § 87(2)(b) then exited the ambulance. Sgt. Verna proceeded to place § 87(2)(b) in handcuffs and walked him into the ambulance, where § 87(2)(b) was sent to § 87(2)(b) where his temperature was taken, and then he was released.

On February 5th, 2021, at approximately 10:30am, § 87(2)(b) returned to the § 87(2)(b) and spoke with § 87(2)(b) and § 87(2)(b) about the incident the day before and called 911 multiple times. PO Matthew Strawn and PO Henry Valencia responded at 1:22pm. PO Strawn spoke with § 87(2)(b) and § 87(2)(b) about the incident and what had transpired on February 4th. PO Strawn then spoke with § 87(2)(b) about the incident. § 87(2)(b) asked PO Strawn to go inside the restaurant and look at surveillance footage for evidence of the incident involving § 87(2)(b) allegedly throwing liquid into § 87(2)(b)'s eye the previous day. After conducting his investigation, PO Strawn did not believe that any criminal activity had occurred. PO Strawn spoke with § 87(2)(b) outside the restaurant and stated, “And if there’s no assault, you’re making a false report, right?” PO Strawn states, “They told you that you had to leave because you spit on the counter” and “Every time you come here you cause problems. So now they don’t want you back any more. You go back in there, you are going to be considered trespassing” (**Allegation B: Abuse of Authority**—§ 87(2)(g)). § 87(2)(b) was not issued a summons and was not arrested.

§ 87(4-b) § 87(2)(g)

Body Worn Camera recorded by PO Pinales, PO Breton, Sgt. Verna, PO Brown, PO Strawn, and PO Valencia, captured footage of this incident (**Board Reviews 7, 17-26**).

Findings and Recommendations

Allegation (A) Abuse of Authority: On February 4, 2021, Sergeant David Verna forcibly removed § 87(2)(b) to the hospital.

It is undisputed that § 87(2)(b) was present at the § 87(2)(b) located at § 87(2)(b) in the Bronx on February 4th, 2021. § 87(2)(b) stated (**Board Review 1**) that he was at the restaurant that evening when engaged in a dispute regarding his order with employees at the restaurant, identified by the investigation as § 87(2)(b) and § 87(2)(b). § 87(2)(b) stated that § 87(2)(b) had used a ladle to throw an unknown liquid into his eye. § 87(2)(b) called 911. § 87(2)(b) stated that an officer asked him if he needed medical attention and he responded that he did. He entered an ambulance, and then immediately

exiting, stating that he wanted to first make a statement before being taken to the hospital and that he did not want to go to the hospital at that time. Officers then placed him in handcuffs and transported him to the hospital.

According to the events information (**Board Review 4**), § 87(2)(b) first called 911 at 10:17pm, and reported that an Asian male had attacked him. PO Pinales and PO Breton of the 47th Precinct responded to the location at 10:30pm, according to PO Pinales' memo book (**Board Review 6**). PO Pinales stated in her CCRB interview (**Board Review 3**) that they responded to a report of harassment.

PO Pinales stated that (**Board Review 3**) upon arriving at the location, she spoke to employees inside the restaurant, § 87(2)(b) and § 87(2)(b) who informed her that § 87(2)(b) had been acting "erratically" and had thrown items inside the restaurant. She then went to speak with § 87(2)(b) outside. He stated that employees of the restaurant had called him a monkey. PO Pinales did not observe any injuries on his person. He appeared upset and was talking about the incident with the employees. He expressed that he was angry and agitated. He did not request any medical attention. PO Pinales did not know if she or any other officers offered medical attention. He looked intoxicated at this point. PO Pinales did not remember if there was an odor of alcohol. PO Pinales and PO Breton provided their information and explained to § 87(2)(b) that the proprietors of the restaurant did not want him on the premises. Many people started to gather. § 87(2)(b) began to talk about God, and doing good things, and "was all over the place."

PO Pinales stated that she then went to her police car, but did not feel comfortable leaving § 87(2)(b) in front of the restaurant. She exited her vehicle and went back to § 87(2)(b) and either she or PO Breton recorded his information for a complaint report. At this point, § 87(2)(b) was yelling at the officers. PO Pinales asked § 87(2)(b) to leave.

At approximately 10:30pm, Sgt. Verna arrived at § 87(2)(b). Sgt. Verna stated in his CCRB interview (**Board Review 2**) that one of the officers on scene had called him and stated that there was a dispute between a restaurant and an "irate male." Sgt. Verna learned that there had been a dispute inside the restaurant, during which § 87(2)(b) had been irate and belligerent with the staff of the restaurant. Sgt. Verna did not learn of any specific actions that § 87(2)(b) took inside the restaurant and did not know any details about the dispute. The officers had escorted him out of the restaurant, however he still wished to remain there and they may need his assistance. At that time, Sgt. Verna did not learn anything else about the nature of the dispute. He learned that the officers believed he was intoxicated and they ordered an ambulance for him. Sgt. Verna did not know which officer called the ambulance.

Sgt. Verna stated that he arrived at the incident location 5 minutes after the call and observed § 87(2)(b) interacting with PO Breton and PO Pinales. Sgt. Verna could not hear the conversation with the officers from his vehicle. § 87(2)(b) was given the option to leave the scene voluntarily or get into an ambulance due to his intoxication. § 87(2)(b) did not choose either option. The officers were gesticulating and pointing both towards the ambulance and for § 87(2)(b) to walk away. § 87(2)(b) was pacing back and forth and not complying with the officers' orders. Sgt. Verna exited his police vehicle and approached him, providing him with the option to leave the scene or to get into the ambulance.

Sgt. Verna stated that as he continued to evaluate § 87(2)(b) the option for him to walk away "went away" due to his evaluation of § 87(2)(b). Sgt. Verna smelled alcohol on his breath. § 87(2)(b) was not making sense with the words he was saying. Sgt. Verna did not recall what § 87(2)(b) was saying. § 87(2)(b)'s fists were balled up and his shoulders were squared in a

sort of fighting stance. Sgt. Verna observed the fighting stance when he first arrived, and the stance became more apparent. Sgt. Verna felt that these were “pre-assault indicators” due to his training and experience. Sgt. Verna observed the stance from when he watched § 87(2)(b) from his vehicle as well as when he exited his vehicle and spoke to him.

Sgt. Verna stated that he interacted with § 87(2)(b) for one or two minutes. Sgt. Verna stated that § 87(2)(b) was acting irate, so he made the decision to take him to the hospital and put him in handcuffs for his safety. Sgt. Verna observed that § 87(2)(b) was “unsteady on his feet” and had trouble walking around. Sgt. Verna did not believe that § 87(2)(b) was a threat to himself besides being afraid that he was going to walk into the street. Sgt. Verna stated that besides the issue with him being unsteady on his feet and near traffic, there were no other indications that he was a threat to himself. Sgt. Verna believed § 87(2)(b) to be a threat to PO Pinales and PO Breton, and the people inside the restaurant due to the dispute that had happened previously, in conjunction with him refusing to leave the location. The purpose of Sgt. Verna sending § 87(2)(b) to the hospital specifically, instead of another location, was due to his intoxication, and to determine if he was an EDP or not. Sgt. Verna did not observe § 87(2)(b) take part in any arrestable offenses while he was at the location. § 87(2)(b) did not make any verbal threats. Sgt. Verna did not remember § 87(2)(b) verbally threatening him specifically. Sgt. Verna decided to take him to the hospital because of the alcohol, his belligerence, and that he was possibly an EDP. Sgt. Verna thought that he may have been an EDP because he was pacing back and forth and not making sense with his words and not complying with orders.

PO Breton’s Body Worn Camera footage (**Board Review 17**) shows that at timecode 1:00, § 87(2)(b) explains to officers what transpired with the restaurant. He motions with open palms towards the restaurant and states, “he threw something in my eye.” Sgt. Verna then asks § 87(2)(b) if he takes any medications. § 87(2)(b) responds, “No medications, I’m just upset.” At timecode 1:36, § 87(2)(b) while recording on his phone, turns to Sgt. Verna and states, “What’s your name, sir?” Sgt. Verna responds with his name. PO Pinales’ Body Worn Camera (**Board Review 18**) shows that at 1:45, § 87(2)(b) explains what happened inside the restaurant. § 87(2)(b) then states, “There’s nothing to be laughing at, this is a serious matter to me.” § 87(2)(b) then takes a step in the opposite direction from Sgt. Verna and turns away, so his back is facing the sergeant. § 87(2)(b) does not ball his fists during the interaction.

§ 87(2)(b) proceeds to enter the ambulance. PO Breton engages her Body Worn Camera approximately five minutes later, and § 87(2)(b) is outside of the ambulance and Sgt. Verna is placing him into handcuffs. In PO Breton’s Body Worn Camera recorded after § 87(2)(b) exits the ambulance (**Board Review 19**), at timecode 00:24, there is no sound in the video, however § 87(2)(b) raises his arms out to the side and walks away from officers. He then walks back towards officers with his cell phone in his hand. At timecode 00:42, Sgt. Verna walks towards § 87(2)(b) and § 87(2)(b) turns his back to Sgt. Verna and starts walking away from him.

Patrol Guide Procedure 221-13 (**Board Review 8**) defines an Emotionally Disturbed Person (EDP) as “A person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others.” Officers are instructed to restrain the EDP and remove them to the hospital.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (B) Abuse of Authority: On February 5, 2021, Police Officer Matthew Strawn threatened to arrest § 87(2)(b)

It is undisputed that PO Strawn told § 87(2)(b) that he could be arrested. At 1:22pm on February 5, 2021, the day after the first incident, PO Strawn and his partner PO Valencia responded to a radio run for a report of harassment. § 87(2)(b) stated in his CCRB interview (**Board Review 1**) that he called 911 for police assistance regarding the ongoing dispute at the § 87(2)(b). § 87(2)(b) stated that two officers responded and spoke to both the employees of the restaurant and himself. § 87(2)(b) stated that an officer told him that if he reviewed video footage from inside the restaurant it did not show any evidence of § 87(2)(b) being assaulted, § 87(2)(b) would “Be in trouble,” and that he would, “lock § 87(2)(b) up.”

PO Strawn stated in his CCRB interview (**Board Review 27**) that he arrived at § 87(2)(b) and spoke to the 911 caller, § 87(2)(b) who stated that he wished to make a report regarding an assault because a report was not done. He stated that he had video of the assault, which involved something getting into his eye. § 87(2)(b) showed PO Strawn some medical records, during which PO Strawn observed that they reflected that there were no injuries to § 87(2)(b). He did not complain of pain. § 87(2)(b) stated that the perpetrator was an Asian male, who stood behind the counter of the restaurant with an Asian female as well. When PO Strawn spoke with § 87(2)(b) he was blinking and stuttering, which led PO Strawn to believe that § 87(2)(b) may not be telling the whole story. PO Strawn found these indicators to be questionable and to wonder if parts of the story were missing. PO Strawn did not believe § 87(2)(b) to have any mental conditions. No other civilians were inside the restaurant at the time. PO Strawn spoke with § 87(2)(b) for approximately five minutes.

PO Strawn stated that during the course of the incident, he conducted an investigation to see if there was any criminal activity that had happened and determined there was none. § 87(2)(b) had brought a physical copy of his medical records with him on the date of the incident. PO Strawn reviewed them and observed that no injuries were noted, and that there were no substances in his eyes. PO Strawn asked if there were any witnesses from the previous night and there were none. PO Strawn stated that § 87(2)(b) was welcome to report the restaurant to the Better Business Bureau. PO Strawn spoke with two restaurant employees who stated that there was a dispute the previous night involving him spitting over the counter and that § 87(2)(b) frequented the restaurant and was removed the previous night. A male employee told PO Strawn that he at one point asked § 87(2)(b) to leave because the female employee believed § 87(2)(b) to often be “causing trouble.” The employees stated that because they refused to take § 87(2)(b) s

order, he spit on the counter, and tried to go around to the left side of the counter towards the employee side of the counter. At that point, the male stated that he decided to call 911 and that he observed that § 87(2)(b) also called 911. PO Strawn talked to the restaurant employees for approximately five minutes. After speaking with the employees, PO Strawn did not believe any criminal activity had occurred.

After reviewing § 87(2)(b)'s medical records, the fact that he did not complain of pain and PO Strawn did not observe any injuries, as well as the interviews with the restaurant employees, and the only physical interaction they described was the spitting, PO Strawn determined that could have been considered harassment. PO Strawn stated that to avoid any future issues, § 87(2)(b) should avoid the location. PO Strawn stated that if he returned, he would be trespassing, and he could be arrested for trespassing. If § 87(2)(b) had refused to leave and the restaurant employees don't want him there, then that would be trespassing. PO Strawn did not tell § 87(2)(b) that he would "lock him up." § 87(2)(b) could not have been arrested for anything besides trespassing if he had returned to the restaurant. § 87(2)(b) could have also been arrested for making a false report.

PO Strawn's Body Worn Camera (**Board Review 7**) shows that § 87(2)(b) appears to be recording on his cell phone, and he recounts his account of being assaulted the prior day. PO Strawn states that he will go look at surveillance footage inside the restaurant. At timecode 1:55, PO Strawn states, "And if there's no assault, you're making a false report, right?" At timecode 2:12, PO Strawn states, "They told you that you had to leave because you spit on the counter." PO Strawn states at timecode 2:25, "Every time you come here you cause problems. So now they don't want you back any more. You go back in there, you are going to be considered trespassing."

Patrol Guide Procedure 208-01 (**Board Review 12**) notes that an officer may arrest anyone committing an offense in their presence.

NY Penal Law 140.05 (**Board Review 14**) notes that trespassing is a violation, defined as when "A person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises."

§ 87(2)(g)

[REDACTED]

§ 87(4-b) § 87(2)(g)

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 15**).
- Sgt. Verna has been a member of service for nine and has been a subject in four CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- PO Strawn has been a member of service for six years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of June 14th, 2022, no Notice of Claims have been filed with the New York City Comptroller's Office (**Board Review 29**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 15

Investigator: <u>Adriaan Denbroeder</u>	<u>Inv. Denbroeder</u>	
06/15/2022		
Signature	Print Title & Name	Date

Squad Leader: <u></u>	<u>IM Simon Wang</u>	<u>06/15/22</u>
Signature	Print Title & Name	Date

Reviewer: _____	_____	_____
Signature	Print Title & Name	Date